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February 25, 2025

SENATE BILL NO. 814

By: Gollihare of the Senate

and

Newton of the House

An Act relating to absentee ballots; amending 26 O.S. 2021, Section 14-115.6, as last amended by Section 23, Chapter 452, O.S.L. 2024 (26 O.S. Supp. 2024, Section 14-115.6), which relates to emergency absentee ballots for first responders and emergency workers; authorizing uniformed service member to receive certain absentee ballot; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 26 O.S. 2021, Section 14-115.6, as last amended by Section 23, Chapter 452, O.S.L. 2024 (26 O.S. Supp. 2024, Section 14-115.6), is amended to read as follows:

Section 14-115.6. A. A registered voter who, after the deadline to request an absentee ballot as provided in Section 14-103 of this title, is deployed as either a ~~first~~:

1. First responder or emergency worker to assist with the rescue, recovery, or relief efforts of a declared natural disaster or state of emergency; or

1 2. Uniformed-service voter as defined in Section 14-137 of this
2 title,

3 may make a written request for an emergency absentee ballot in a
4 form prescribed by the Secretary of the State Election Board. The
5 request shall be signed by the voter and shall be provided by the
6 voter to the secretary of the county election board in the county
7 where the voter is registered. Requirements for matching of name,
8 birth date, and identification number established pursuant to
9 Section 14-105 of this title shall apply to a request for an
10 absentee ballot under this section.

11 B. Upon receipt of the voter's request, the secretary of the
12 county election board shall issue to the voter the appropriate
13 ballots and envelopes required for voting an emergency absentee
14 ballot. Provided, the voter shall present proof of identity as
15 required by Section 7-114 of this title.

16 C. The ballots must be returned in person by the voter, by
17 United States mail, or by other means of delivery approved by the
18 Secretary of the State Election Board, to the secretary of the
19 county election board no later than 7:00 p.m. on the day of the
20 election.

21 D. Upon return of the absentee ballots, the secretary of the
22 county election board shall cause the ballots to be processed in the
23 same manner as is prescribed for other absentee ballots.

1 E. The Secretary of the State Election Board shall promulgate
2 rules to implement the procedures described in this section.

3 SECTION 2. This act shall become effective July 1, 2025.

4 SECTION 3. It being immediately necessary for the preservation
5 of the public peace, health or safety, an emergency is hereby
6 declared to exist, by reason whereof this act shall take effect and
7 be in full force from and after its passage and approval.

8 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
9 February 25, 2025 - DO PASS
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